

		Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
4	Rivas v. Hurtado 2021-01225380 Be Relieved as Counsel of Record OSC Re Dismissal on Settled Case	The motion of attorney Simah Aljabari from Ledezma Law, APLC to be relieved as counsel of record for plaintiff Felipe Rivas is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
5	Diana Lynn Garbers, Trustee of Diana Lynn Garbers Trust of 1999 v. Fierro 2025-01552051 Motion for Preference CMC	Plaintiff Diana Lynn Garbers's as Trustee of the Diana Lynn Garbers Trust of 1999 Motion for Trial Preference is DENIED. "(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: [¶] (1) The party has a substantial interest in the action as a whole. [¶] (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (§ 36(a).) Plaintiff's declaration fails to show her health is such that preference is necessary. She states due to her age "I am concerned about my ability to fully participate in and endure a prolonged litigation process." (Gabers Decl., ¶ 4.) However, Plaintiff provides no medical diagnosis which supports her concern. Additionally, counsel's declaration is insufficient for the same reason as it fails to provide a medical basis for his concern for Plaintiff's ability to participate in trial. (See <i>Fox v. Superior Court</i> (2018) 21 Cal.App.5th 529, 534-535.) Thus, Plaintiff has failed to show there is a good medical reason for concern her ability to participate in trial will be adversely affected if preference is not granted. Accordingly, Plaintiff's Motion is denied.
6	Clark v. Clark 2025-01530857 Motion for Reconsideration	Plaintiff Edward L. Clark, Jr.'s Motion for Reconsideration (ROA 148) is DENIED. Plaintiff moves for reconsideration of "a prior order from Judge Michael Strickroth denying ex parte application for an order granting a Temporary Restraining Order (TRO) pending its decision to review Defendants response to

	Order To Show Cause (OSC) why a preliminary injunction should not issue against Defendants Richard Grover and Deborah L Clark.” (Motion, p. 2:4-7.) Plaintiff seeks reconsideration pursuant to Code of Civil Procedure, section 1008. Section 1008, subdivision (a) provides: When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. Here, Plaintiff’s motion is not accompanied by the required affidavit stating, “what application was made before, when and to what judge, what decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (See Code Civ. Proc., ¶ 1008, subd (a); see <i>Branner v. Regents of Univ. of Calif.</i> (2009) 175 Cal.App.4th 1043, 1048 [motion filed and served without supporting affidavit was invalid (affidavit filed later insufficient)].) The court declines Plaintiff’s suggestion that it reconsider on its own motion. Such a written suggestion is improper where the motion does not comply with section 1008 and the court need not rule on it. (See <i>Le Francois v. Goel</i> (2005) 35 Cal.4th 1094, 1108.) Even if it were proper, it is not clear which order Plaintiff seeks reconsideration of. In the motion, Plaintiff fails to provide the date the order was issued but appears to describe a 2/3/26 order issued by Judge Strickroth. However, in his reply Plaintiff argues for reconsideration of an order issued on 5/13/26 by Judge Oberholzer. (See Reply, p. 2:21-22.) Regarding timeliness of the motion, the 10-day limit does not apply where there is no notice of entry of order served. (<i>Novak v. Fay</i> (2015) 236 Cal.App.4th 329, 335-336.) Whether Plaintiff seeks reconsideration of the 2/3/26 order or the 5/13/26 order, there is no evidence that a notice of entry of either order was ever served. Defendant states that notice of ruling of the 5/13/26 order was mailed. However, Defendant provides no proof of such mailing. Further, the 2/3/26 order states “No further notice is ordered.”
--	--

		The motion is denied. Defendant's request for sanctions is denied.
8	Smith v. Hyundai Motor America 2026-01560861 Motion to Compel Arbitration	Defendant Hyundai Motor America's Motion to Compel Arbitration is DENIED. Defendant seeks to compel Plaintiff Lisa Smith to arbitrate her claims against Defendant based on two arbitration provisions: (1) a provision contained in the "Owner's Handbook and Warranty Information (the Handbook); and (2) a provision contained in the "Bluelink Connected Services Agreement" (CSA). Defendant's request for judicial notice of the Complaint is granted although unnecessary. Owner's Handbook and Warranty Information The Handbook for Plaintiff's vehicle sets forth the details of Defendant's express warranty, and Plaintiff's claims in this action are based in part on the existence of this warranty. (Ameripour Decl., Ex. 3.) The provision also provides the FAA applies. (Ameripour Decl., Ex. 3, § 4, p. 14.) Under the FAA, the court must compel arbitration of claims covered by an enforceable arbitration agreement. (9 U.S.C. § 3.) The party seeking to compel arbitration has the burden of proving the existence of an agreement to arbitrate by a preponderance of the evidence. (<i>Johnson v. Walmart Inc.</i> (9th Cir. 2023) 57 F.4th 677, 681 (<i>Johnson</i>)). Importantly, " 'while doubts concerning the scope of an arbitration clause should be resolved in favor of arbitration, the presumption does not apply to disputes concerning whether an agreement to arbitrate has been made.' [Citations.]" (<i>Id.</i> at pp. 680-681.) " '[A]rbitration is strictly a matter of consent ... and thus is a way to resolve those disputes—but only those disputes—that the parties have agreed to submit to arbitration.' [Citation] (emphasis in original).... As 'arbitration is a matter of contract[,]' ... a party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.' [Citations.]" (<i>Id.</i> at 681.) To determine whether the parties have agreed to arbitrate a dispute, federal courts apply state-law principles of contract formation. (<i>Berman v. Freedom Financial Network, LLC</i> (9th Cir. 2022) 30 F.4th 849, 855.) To form a contract under California law, there must be mutual assent. (<i>Herzog v. Superior Court</i> (2024) 101 Cal.App.5th 1280, 1293-1294 (<i>Herzog</i>); <i>Long v. Provide Commerce, Inc.</i> (2016) 245 Cal.App.4th 855, 862 (<i>Long</i>)). " 'Mutual